her cross-complaint. And that's what she says she wants to do, anyway.

**MS. AASEN:** If that's your Honor's ruling, we'll evaluate whether we have an ongoing need for them, and with an eye towards what she's pleading in defense of the existing complaint.

**MS. WALSH:** Your Honor, one more thing. I'm right now being ordered to attend this mental examination on the 26th and 27th from September 8th. There's rising COVID cases in New York City. If you look at the order, I'm being told that I can't wear a mask during the evaluation. I'm scared to death of Mr. Russell knowing my location.

I ask that the court, if I'm dismissing my complaint and I don't sign these authorizations, that if I don't attend this mental examination, that I not be penalized with more money for the mental evaluator's time.

**JUDGE PRO TEMPORE:** No. I agree with you. They are now on notice that you don't intend to appear for that. And I'm saying that they can't -- they can't then seek to recover costs for somebody coming out when you've told them that you wouldn't do it. But my order will cover that. My order will save you the trouble --

**MS. WALSH:** Okay.

**JUDGE PRO TEMPORE:** -- of filing a dismissal. And I

Public copy: a private street address, a personal phone number and a personal email address are removed. Otherwise unchanged.

will just give you -- today is the 6th. I will give you ten days to authorize the signatures that they ask for in their motion.

**MS. WALSH:** Okay.

**JUDGE PRO TEMPORE:** If you fail to do it, I will impose the sanction that your cross-complaint will be dismissed and the psychiatric I.M.E. will be cancelled.

**MS. WALSH:** And I'm sorry, your Honor, for rambling so much. But they sent discovery requests to every single family member and to a few of my best friends for things like five years' worth of text messages. Again, it's not that they're not trying to comply, but I can't put them in the cross fire of Mr. Russell.

I would ask that the court also include those discovery requests, as Mr. Russell's counsel said that those discovery requests were only relevant to my cross-complaint. And again, these people don't even know Mr. Russell, live in New York, want nothing to do with the guy, know nothing about him, have never stepped a foot in California.

So I ask that that also be included in the order because all of my friends are terrified of Mr. Russell. The legal fees, the ramifications have already put them through enough.

**JUDGE PRO TEMPORE:** Ms. Walsh, the problem is, I don't have that in front of me. I don't know what the

discovery is. And that is something that you'll have to take up with them as to whether or not the deposition notices they have sent for family members or friends are relevant to the main suit as opposed to your cross-complaint.

Okay?

And I'm sure Ms. Aasen will take a look at it and decide whether or not she believes that they still are necessary, but I can't deal with them because I don't have them in front of me.

Okay?

**MS. WALSH:** Okay.

**JUDGE PRO TEMPORE:** The only thing I can deal with is their Motion to Compel you to authorize the release of certain records. And the order that I will issue is that you will have to comply with their request for authorization within ten days from today. And that failure -- if you fail to do it, that your cross-complaint will be dismissed with prejudice and the I.M.E. will be cancelled.

**MS. WALSH:** Okay. All right.

**JUDGE PRO TEMPORE:** Ms. Aasen, do you understand?

**MS. AASEN:** I understand, your Honor.

**JUDGE PRO TEMPORE:** And will you prepare that form of order and submit a copy to her for review and approval as to form, and then send a copy to me?

**MS. AASEN:** We are to prepare the proposed order as your Honor just described, just to make sure I get it right, she is compelled to sign the authorizations within ten days?

**JUDGE PRO TEMPORE:** Yes.

**MS. AASEN:** And then, should she not, then we will formally dismiss her cross-complaint with prejudice?

**JUDGE PRO TEMPORE:** Right. And that the I.M.E. that is presently scheduled for -- I think it's October 26th -- has been cancelled -- will be cancelled.

**MS. AASEN:** We're going to exclude all the evidence of her emotional distress. And she should also be excluded from discussing her emotional distress at trial.

**MS. WALSH:** That doesn't make any sense. Well, whatever.

**JUDGE PRO TEMPORE:** The problem is, I don't know, in the context in which you say "discuss her emotional distress," so I'm not prepared to go that far. So I'll let the trial judge make that judgment.

**MS. AASEN:** Yes, your Honor.

**JUDGE PRO TEMPORE:** Ms. Walsh, anything else?

**MS. WALSH:** That's it.

**JUDGE PRO TEMPORE:** Do you understand the import of what I said?

**MS. WALSH:** Umm, I do, yeah. I wish to drop my cross-complaint, anyway, so --

**JUDGE PRO TEMPORE:** You'll get your wish.

**MS. WALSH:** Okay.

**JUDGE PRO TEMPORE:** Okay?

**MS. WALSH:** All right. Thank you, your Honor. I have to go get my daughter from my dad. He's freaking out. So...

**JUDGE PRO TEMPORE:** All right. Anything else?

**MS. AASEN:** No, your Honor.

**JUDGE PRO TEMPORE:** All right. Thank you.

**MS. WALSH:** All right. Thank you, your Honor. Bye.

**JUDGE PRO TEMPORE:** Good luck.

(Proceedings concluded at 9:54 a.m.)

**REPORTER'S CERTIFICATE**

STATE OF CALIFORNIA )
) ss.
COUNTY OF ORANGE )

I, PATRICK R. BREZNA, CSR NO. 5288, CERTIFIED REALTIME REPORTER, REGISTERED PROFESSIONAL REPORTER, DO HEREBY CERTIFY THAT THE FOREGOING REPORTER'S TRANSCRIPT IS A FULL, TRUE AND CORRECT TRANSCRIPTION OF MY SHORTHAND NOTES THEREOF, AND A FULL, TRUE AND CORRECT STATEMENT OF THE PROCEEDINGS HAD IN SAID CAUSE BASED ON THE ZOOM WEBINAR PLATFORM.

DATED AT ORANGE, CALIFORNIA, THIS 6th DAY OF OCTOBER, 2020.

_____
PATRICK R. BREZNA, CSR NO. 5288,
Certified Realtime Reporter,
Registered Professional Reporter

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SUPERIOR COURT OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

| | |
|---|---|
| STEPHEN RUSSELL, etc., Plaintiff, v. TARA WALSH, etc., et al., Defendants. AND RELATED CROSS-COMPLAINT. | WAIVER OF COST FOR REPORTER'S TRANSCRIPT ON APPEAL<br>No. CGC-18-570137 |

TO THE CLERK OF THE ABOVE-ENTITLED COURT:

YOU ARE HEREBY NOTIFIED THAT PATRICK R. BREZNA, CSR NO. 5288, COURT REPORTER PRO TEMPORE, RPR, CRR, HEREBY WAIVES THE COST FOR PREPARATION OF AN ORIGINAL AND ONE COPY OF THE REPORTER'S TRANSCRIPT ON APPEAL DESIGNATED BY DEFENDANT/APPELLANT FOR THE DATE OF OCTOBER 6, 2020, IN THE ABOVE-CAPTIONED CASE.

DATED AT ORANGE, CALIFORNIA, THIS 13th DAY OF MAY, 2022.

PATRICK R. BREZNA, CSR NO. 5288
COURT REPORTER PRO TEMPORE

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN THE CITY AND COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE GARRETT L. WONG, JUDGE

DEPARTMENT 504

---OOO---

STEPHEN RUSSELL,
Plaintiff,
vs.
TARA WALSH, et al.,
Defendant

CASE NO. CGC-18-570137

REPORTER'S TRANSCRIPT OF PROCEEDINGS

Wednesday, February 16, 2022

Reported by Angie Diner, RMR, CRR, CSR 9581

A P P E A R A N C E S:

FOR Plaintiff Stephen Russell:

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WITNESS INDEX

WITNESS: PAGE:

TARA WALSH

DIRECT EXAMINATION BY MR. WALLER.....64

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PLAINTIFF'S EXHIBITS

| NO. | DESCRIPTION | MARKED | ENTERED |
|---|---|---|---|
| COURT EXHIBIT 1 | | 102 | |
| EXHIBIT 11 | | | 147 |
| EXHIBIT 32 | | | 136 |
| EXHIBIT 33 | | | 138 |
| EXHIBIT 36 | | | 201 |
| EXHIBIT 38 | | | 130 |
| EXHIBIT 38-A | | | 127 |
| EXHIBIT 38-B | | | 110 |
| EXHIBIT 39 | | | 172 |
| EXHIBIT 46 | | | 149 |
| EXHIBIT 72 | | | 116 |
| EXHIBIT 99 | | | 155 |

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PROCEEDINGS FOR FEBRUARY 16, 2022

GARRETT L. WONG PRESIDING DEPT. 504

9:39 A.M.

---OOO---

THE CLERK: Calling the case of Stephen Russell v. Tara Walsh, Case Number CGC 18-570137.

Counsel, please state your appearances.

MR. WALLER: Good morning, Your Honor. For the plaintiff, Stephen Russell, I'm Brian Waller.

THE COURT: Thank you.

MS. WALSH: Tara Walsh, self-represented party and defendant.

THE COURT: Very good. Thank you.

Good morning, ladies and gentlemen. Welcome to Department 504, and we are about to begin this case. We're entering the phase of trial where I will initially give you some instructions about your duties as jurors in this case, and then -- that will take roughly 20 minutes, 25 minutes, and after that we will have opening statements in the case. Mr. Waller will presumably give an opening statement, and if Ms. Walsh decides to make an opening statement, she can do so. She has the option of waiting until the presentation of her case.

So without further ado, I will go to the basic